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CASE NAME: Jesse Hirezi, et al. v. Hannah Bishara Hirezi, et al.

Defendants/Cross-Complainants Hanna Bishara Hirezi, Mona Hirezi, Golden Springs, LLC, Arrow Beverage Inc., and Bethlehem Star, Inc.'s Motion to Tax Costs

TENTATIVE RULING

The Court treats Defendants/Cross-Complainants Hanna Bishara Hirezi, Mona Hirezi, Golden Springs, LLC, Arrow Beverage Inc., and Bethlehem Star, Inc.'s Motion to Tax Costs as a Motion to Strike the Memorandum of Costs and GRANTS such motion. Plaintiffs' Memorandum of Costs filed July 2, 2026 is hereby stricken without prejudice.

Defendants are ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is a family business dispute. On November 15, 2023, plaintiffs Jesse Hirezi (Jesse), an individual and as Trustee of the J & R Hirezi Family Trust of April 20, 2015, Randa Hirezi (Randa), an individual and as Trustee of the J & R Hirezi Family Trust of April 20, 2015 (collectively, Plaintiffs) filed this action against defendants Hanna Bishara Hirezi a/k/a Hanna Hirezi a/k/ John Hirezi (Hanna or John), Mona Qumsieh Hirezi a/k/a Mona Hirezi a/k/a Mona J. Herzi, Bethlehem Star, Inc. (Bethlehem), Golden Springs, LLC (Golden Springs), Arrow Beverage, Inc. (Arrow) (collectively, Defendants), and Does 1 through 20. On May 2, 2024, Plaintiffs filed the operative First Amended Complaint, alleging causes of action for breach of partnership agreement, breach of fiduciary duty, dissolution of partnership/corporation, accounting, quasi contract and constructive trust, money had and received, declaratory relief, and partition.

On September 13, 2024, Defendants John, Golden Springs, and Bethlehem (collectively, Cross-Complainants) filed a cross-complaint against Plaintiffs and Roes 1 through 10, alleging causes of action for contribution, quantum meruit, and declaratory relief.

On May 18, 19, and 20, 2026, this matter came on for a non-jury trial. On June 22, 2026, the Court issued a tentative decision and proposed statement of decision. On July 31, 2026, the Court adopted its tentative decision as the Court's final decision.

On July 2, 2026, Plaintiffs filed a Memorandum of Costs. On July 13, 2026, Defendants/Cross-Complaints moved to tax costs. Plaintiffs did not oppose the Motion.

LEGAL STANDARD

(a) Claiming costs

(1) Trial costs

A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first. The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case.

...

(b) Contesting costs

(1) Striking and taxing costs

Any notice of motion to strike or to tax costs must be served and filed 15 days after service of the cost memorandum. If the cost memorandum was served by mail, the period is extended as provided in Code of Civil Procedure section 1013. If the cost memorandum was served electronically, the period is extended as provided in Code of Civil Procedure section 1010.6(a)(3).

(2) Form of motion

Unless objection is made to the entire cost memorandum, the motion to strike or tax costs must refer to each item objected to by the same number and appear in the same order as the corresponding cost item claimed on the memorandum of costs and must state why the item is objectionable.

(3) Extensions of time

The party claiming costs and the party contesting costs may agree to extend the time for serving and filing the cost memorandum and a motion to strike or tax costs. This agreement must be confirmed in writing, specify the extended date for service, and be filed with the clerk. In the absence of an agreement, the court may extend the times for serving and filing the cost memorandum or the notice of motion to strike or tax costs for a period not to exceed 30 days.

(4) Entry of costs

After the time has passed for a motion to strike or tax costs or for determination of that motion, the clerk must immediately enter the costs on the judgment.

(Cal. Rules of Court, rule 3.1700, bold in original.)

DISCUSSION

Defendants/Cross-Complainants move to tax Plaintiffs' Memorandum of Costs filed on July 2, 2026 (the Memorandum), in its entirety under California Rules of Court, rule 3.1700, subdivision (b). They contend the Memorandum was served prematurely because, following the Court's June 22, 2026 tentative ruling, no judgment has been entered and no notice of entry of judgment has been filed or served. Defendants/Cross-Complainants argue that rule 3.1700, subdivision (b), permits a prevailing party to serve and file a memorandum of costs only within 15 days after service of the notice of entry of judgment or dismissal under Code of Civil Procedure section 664.5, or within 180 days after entry of judgment, whichever is first, and that the absence of any judgment renders the memorandum invalid. They further contend that the Court did not award attorney fees and that the Memorandum lists attorney fees as the subject of a motion to be filed.

The Court finds that Plaintiffs' Memorandum of Costs is premature and treats Defendants' motion as a motion to strike, rather than a motion to tax costs. There is a well-established rule that costs follow only the ultimate determination of the action. (See *Elbert, Ltd. v. Federated etc. Properties* (1953) 120 Cal.App.2d 194, 209 ["The law is clearly established that costs or attorney's fees may not be allowed until the final judgment is entered and have no proper place in the interlocutory decree."].) Here, no judgment has been entered yet, and the pending judgment is an interlocutory judgment, not a final judgment. Thus, the action is not complete, and the judgment is not yet final. The parties will necessarily incur additional costs until the final judgment is filed. Thus, the Memorandum of Costs is premature. The Court will exercise its discretion to strike the Memorandum of Costs.[1]

The Court emphasizes that this ruling is made without prejudice of Plaintiffs' ability to file a new Memorandum of Costs after a final judgment is entered.

CONCLUSION

The Court treats Defendants/Cross-Complainants Hanna Bishara Hirezi, Mona Hirezi, Golden Springs, LLC, Arrow Beverage Inc., and Bethlehem Star, Inc.'s Motion to Tax Costs as a Motion to Strike the Memorandum of Costs and GRANTS such motion. Plaintiffs' Memorandum of Costs filed July 2, 2026 is hereby stricken without prejudice.

Defendants are ordered to give notice of the Court's ruling within five calendar days of this order.

[1] Given the Court's finding, the Court does not reach the merits of the specific costs sought by Plaintiffs.